

Court No. - 3

Case :- WRIT - C No. - 8345 of 2022

Petitioner :- Mohd. Shahab

Respondent :- State Of U.P. Thru. Prin. Secy. Power And Energy Deptt. ,
Civil Secrt. Lko. And Others

Counsel for Petitioner :- Afaq Zaki Khan, Mohd. Mansoor

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Attau Rahman Masoodi, J.

Hon'ble Om Prakash Shukla, J.

Heard learned counsel for the parties.

The averments made in the writ petition essentially indicate that there is a billing dispute between the petitioner and opposite party nos.2 to 4. Although regular electricity bills issued to the petitioner have been paid throughout but the instant demand has been raised on account of some mistake in the bills issued. The petitioner has disputed the liability on the ground that he was not informed of any reason prior to the rectification of bills.

In the circumstances of the case, we leave it open to the petitioner to make a representation before the competent authority within a period of two weeks from today and in case any such representation is made in terms of Clause 6.5 (b) of U.P. Electricity Supply Code, 2005 within the aforesaid period, the competent authority after due opportunity to the petitioner shall decide the same and pass necessary order expeditiously and preferably within a period of one month from the date of filing of the representation.

For a period of one month or till the decision on the petitioner's representation, coercive measures shall not be taken against the petitioner.

The writ petition is accordingly disposed of.

Order Date :- 28.11.2022

Shahnaz